

1.

CASE #	CASE NAME	HEARING NAME
CVPS2509974	LEWIS VS CITY OF CATHEDRAL CITY	MOTION TO STAY BY WILLIAM FRANK RODRIGUEZ

Tentative Ruling: Individuals who are subject to criminal proceedings are entitled to a stay of discovery in the civil action until the criminal matter was disposed. (*Pacers, Inc. v. Superior Court* (1984) 162 Cal.App.3d 686, 690.) “Staying civil discovery to await the outcome of a related criminal case might benefit the litigants and does not implicate constitutional issues. [citations.] However, courts are guided by the strong principle that any elapsed time other than that reasonably required for pleadings and discovery ‘is unacceptable and should be eliminated.’ [citation.] Courts must control the pace of litigation, reduce delay, and maintain a current docket so as to enable the just, expeditious, and efficient resolution of cases.” The focus is “from the standpoint of fairness, not from any constitutional right.” (*Fuller v. Superior Court* (2001) 87 Cal.App.4th 299, 306-307.)

As stated by *People ex rel. Harris v. Risso* (2013) 214 Cal.App.4th 921, 951-952 (“*Harris*”), the court looks to the following factors: (1) the interest of the party opposing the stay in proceeding expeditiously, and potential prejudice; (2) the burden which any particular aspect of the proceedings may impose on the party seeking the stay; (3) the convenience to the court in management of its cases and efficient use of judicial resources; (4) the interests of persons not parties to the civil litigation; and (5) the interest of the public in the pending cases.

The privilege against self-incrimination is personal and applies only to compulsion of the individual holding the privilege. (*Couch v. United States* (1973) 409 U.S. 322, 328.) The privilege against self-incrimination only protects natural persons. It may not be asserted by a corporation, partnership or other entity. (See *United States v. White* (1944) 322 U.S. 694, 699; *Curcio v. United States* (1957) 354 U.S. 118, 122; *Bellis v. United States* (1974) 417 U.S. 85,

“A party is not entitled to decide for himself or herself whether the privilege against self-incrimination may be invoked”, but rather “this question is for the court to decide after conducting ‘a particularized inquiry, deciding, in connection with each specific area that the questioning party seeks to explore, whether or not the privilege is well founded. [Citation.]’ [Citation.]” (*Warford v. Medeiros* (1984) 160 Cal.App.3d 1035, 1045, original italics.) The California Supreme Court has noted “the fact that a man is indicted cannot give him a blank check to block all civil litigation on the same or related underlying subject matter” but that “[j]ustice is meted out in both civil and criminal litigation...” (*People v. Coleman* (1975) 13 Cal.3d 867, 885.) “In deciding whether a question may incriminate a witness, the courts have ... been guided by the principle that protection must be confined to instances where the witness has reasonable cause to apprehend danger from a specific answer to a specific question.” (*Blackburn v. Superior Court* (1993) 21 Cal.App.4th 414, 427.)

Defendant relies on *Pacers, supra*, 162 Cal.App.3d at 687 to advance her argument for stay. In *Pacers*, the respondents had filed a civil suit against petitioners for assault and battery while the United States Attorney General sought indictments against petitioners for assault and battery as well. (*Id.*) The Court of Appeal held the petitioners did not violate discovery rules by asserting their 5th Amendment privilege against self-incrimination at depositions in the civil action (*Id.* at 688.) The court further held that the trial court abused its discretion in prohibiting defendants from testifying at trial because

the order penalized defendants for asserting their 5th Amendment rights. (*Id.* at 689.) “An order staying discovery until expiration of the criminal statute of limitations would allow [respondents] to prepare their lawsuit while alleviating petitioners’ difficult choice between defending either the civil or criminal case.” (*Id.* at 690.) The parties agreed to waive the 5-year time limit to allow respondents any necessary time to conduct further discovery. (*Id.*)

However, the real parties in interest in *Pacers* were all individuals that could assert the privilege against self-incrimination. Here, there are entities named as defendants. The privilege against self-incrimination only protects natural persons and may not be asserted by a corporation, partnership or other entity. (See *United States v. White* (1944) 322 U.S. 694, 699; *Curcio v. United States* (1957) 354 U.S. 118, 122; *Bellis v. United States* (1974) 417 U.S. 85, 100-101.) Because City and Silvercrest have no privilege against self-incrimination, and only Rodriguez is the only defendant facing criminal charges, there is no basis to stay the entire litigation.

The first and second causes of action are asserted against City and not Rodriguez. These claims may be investigated without compelling testimony from Rodriguez. Rodriguez’s criminal negligence is not relevant to determine whether or not a dangerous condition exists. As stated in *Cerna v. City of Oakland* (2008) 161 Cal.App.4th 1340, 1348:

A public entity may be liable for a dangerous condition of public property even where the immediate cause of plaintiff’s injury is a third party’s negligent or illegal act [...] if some physical characteristic of the property exposes its users to increased danger from third party negligence or criminality. [Citation.] But it is insufficient to show only harmful third party conduct, like the conduct of a motorist. “ ‘[T]hird party conduct, by itself, unrelated to the condition of the property, does not constitute a “dangerous condition” for which a public entity may be held liable.’ ” [Citation.] There must be a defect in the physical condition of the property and that defect must have some causal relationship to the third party conduct that injures the plaintiff. [Citation.] “[P]ublic liability lies under [Government Code] section 835 only when a feature of the public property has ‘increased or intensified’ the danger to users from third party conduct.”

Plaintiff must prove that the public property is dangerous irrespective of Rodriguez’s criminal negligence. Rodriguez would not suffer prejudice given the first two causes of action are not against him. Therefore, Plaintiff shall be provided the opportunity to propound discovery on this issue. The burden of imposing an entire stay on the case would allow discovery to stagnate and potential witnesses to forget information. The Court can address issues of the 5th Amendment if and when Rodriguez asserts the privilege because “a blanket refusal to testify is unacceptable.” (*Warford, supra*, 160 Cal.App.3d at 1044-1045; *People v. Coleman, supra*, 13 Cal.3d at 885.) There is no evidence presented showing that Rodriguez has a present obligation to answer any discoveries. A generalized reference to Rodriguez’s 5th Amendment right does not establish good cause to suspend all discovery.

Defendant William Frank Rodriguez’s Motion to Stay Civil Proceedings Pending Resolution of Criminal Proceedings DENIED in PART.

Motion to Stay as to Defendants City of Cathedral City, Silvercrest Advertising and Christal F. Barrington DENIED.

Motion to Stay as to Defendant William Frank Rodriguez GRANTED. Civil proceedings against Defendant Rodriguez are STAYED. Plaintiff Lewis maintains the option to revisit the court's order regarding the stay in relation to Defendant Rodriguez's status in his criminal matter FEIN 2502319.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2509974	LEWIS VS CITY OF CATHEDRAL CITY	MOTION TO STAY AND QUASH BY SILVERCREST ADVERTISING

Tentative Ruling:

Motion to Stay Proceedings:

Silvercrest relies on *Pacers*, *supra*, 162 Cal.App.3d at 687 to advance its argument for stay. As already discussed in Defendant Rodriguez's motion to stay, in *Pacers*, the respondents had filed a civil suit against petitioners for assault and battery while the United States Attorney General sought indictments against petitioners for assault and battery as well. (*Id.*) The Court of Appeal held the petitioners did not violate discovery rules by asserting their 5th Amendment privilege against self-incrimination at depositions in the civil action (*Id.* at 688.) The court further held that the trial court abused its discretion in prohibiting defendants from testifying at trial because the order penalized defendants for asserting their 5th Amendment rights. (*Id.* at 689.) "An order staying discovery until expiration of the criminal statute of limitations would allow [respondents] to prepare their lawsuit while alleviating petitioners' difficult choice between defending either the civil or criminal case." (*Id.* at 690.) The parties agreed to waive the 5-year time limit to allow respondents any necessary time to conduct further discovery. (*Id.*)

However, the real parties in interest in *Pacers* were all individuals that could assert the privilege against self-incrimination. Here, Silvercrest is an entity, not a natural person. The privilege against self-incrimination only protects natural persons and may not be asserted by a corporation, partnership or other entity. (See *United States v. White* (1944) 322 U.S. 694, 699; *Curcio v. United States* (1977) 426 U.S. 445, 449; *Bellis v. United States* (1974) 417 U.S. 85, 100-101.) Because Silvercrest has no privilege against self-incrimination there is no basis to stay the litigation.

Defendant Silvercrest Advertising's Motion to Stay Civil Case Pending Resolution of Parallel Criminal Proceedings DENIED.

Motion to Quash 3rd Party Subpoenas:

Silvercrest also moves for an order to quash Plaintiff's subpoena to several third parties pursuant to Code of Civil Procedure sections 1987.1 and 2025.420.

In opposition, Plaintiff points out the 5th amendment privilege does not protect against the production of a person's documents possessed by third parties. Plaintiff argues the motion should be denied because Silvercrest failed to include a separate statement.